No. 25-10979

IN THE UNITED STATES COURT OF APPEALS FOR
In the United States Court of Appeals
THE FIFTH CIRCUIT
for the Fifth Circuit

Mary Dawes, Individually and the Administrator of the Estate of Decedent Genevive A. Dawes; Alfredo Saucedo; Virgilio Rosales,

Mary Dawes, Individually and the Administrator of the Estate of Decedent Genevive A. Dawes; Alfredo Saucedo; Virgilio Rosales,

Plaintiffs – Appellants

v.

City of Dallas; Christopher Hess; Jason Kimpel,

Plaintiffs – Appellants

Defendants – Appellees

v.

Appeal from the United States District Court for the Northern District of Texas, Dallas Division

City of Dallas; Christopher Hess; Jason Kimpel,

BRIEF OF APPELLEE CITY OF DALLAS

Defendants – Appellees

TAMMY L. PALOMINO
City Attorney
JENNIFER C. HUGGARD
Chief of Litigation
NICHOLAS D. PALMER
Chief of Appellate Section

Appeal from the United States District Court
for the Northern District of Texas, Dallas Division

BRIEF OF APPELLEE CITY OF DALLAS

TAMMY L. PALOMINO
City Attorney

JENNIFER C. HUGGARD
Chief of Litigation

NICHOLAS D. PALMER
Chief of Appellate Section

J. CHEVES LIGON
State Bar No. 24070147
Assistant City Attorney
CITY ATTORNEY'S OFFICE
1500 Marilla Street, Suite 7DN
Dallas, Texas 75201
214-670-3519

J. CHEVES LIGON
State Bar No. 24070147
Assistant City Attorney
CITY ATTORNEY'S OFFICE
1500 Marilla Street, Suite 7DN
Dallas, Texas 75201
Telephone: 214-670-3519
Telecopier: 214-670-0622

ATTORNEYS FOR THE CITY OF DALLAS

ATTORNEYS FOR THE CITY OF DALLAS

EXEMPTION FROM CERTIFICATE OF INTERESTED PERSONS

The Appellee-Defendant City of Dallas (the "City"), as a governmental party, is exempt from the requirement to certify interested persons under Local Rule 28.2.1.

s/ J. Cheves Ligon
Assistant City Attorney

/s/ J. Cheves Ligon
Attorney of Record for Appellee
City of Dallas

STATEMENT REGARDING ORAL ARGUMENT

The City believes oral argument is not necessary because the factual and legal issues in this appeal involve settled issues of law, so argument will not assist this Court in determining whether the evidence in the record creates a fact issue as to Appellants' *Monell* claims.

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RESPONSE TO STATEMENT OF ISSUES

1. The district court correctly entered summary judgment in favor of the City because the evidence does not create a genuine issue of material fact concerning the reasonableness of the Officers' use of deadly force under the circumstances.

2. The district court correctly entered summary judgment in favor of the City because this Court's precedent forecloses *Monell* liability against the City on Appellants' failure-to-train claims when this Court has already held that the Officers' conduct did not violate a clearly established constitutional right.

STATEMENT OF THE CASE

This appeal is the second time this case has been heard by the Court. In its prior examination of this case, the Court examined the undisputed facts of the incident at issue. *See generally Dawes v. City of Dallas ("Dawes I")*, No. 22-10876, 2024 WL 2268529 (5th Cir. May 20, 2024), *cert. denied*, 145 S. Ct. 2699 (2025). As such, in addition to citations to the record on appeal, the City cites to the undisputed facts as described by the Court in *Dawes I*.[1]

[1] "The law-of-the-case doctrine generally provides that when a court decides upon a rule of law, that decision should continue to govern the same issues in subsequent stages in the same case." *Winfrey v. Rogers*, 901 F.3d 483, 491 (5th Cir. 2018) (cleaned up). "The doctrine is meant to promote judicial efficiency so that appellate courts do not continually have to reexamine subsequent proceedings in the same case. It forecloses reexamination on a subsequent appeal." *Id.* None of the exceptions to the rule—new evidence, new controlling authority, or a clearly erroneous decision—apply. *Id.*; *see also United States v. Smith*, 814 F.3d 268, 273 (5th Cir. 2016) ("The law-of-the-case doctrine bars reexamination of issues of law or fact decided on appeal in subsequent proceedings in a trial or appellate court."); *Cooper Tire & Rubber Co.*

On January 17, 2017, six officers with the Dallas Police Department ("DPD")—Officers Christopher Hess, Jason Kimpel, Christopher Alisch, Zachary Hopkins, Erin Evans, and Peter Lickwar (the "Officers")—were dispatched to investigate a suspicious vehicle parked in the parking lot of a Dallas apartment complex. *Dawes I*, 2024 WL 2268529, at *1; ROA.805. Dawes and Rosales (together, "Appellants") were inside the vehicle, a Dodge Journey, which had been reported stolen. *Dawes I*, 2024 WL 2268529, at *1; ROA.810-11. Officers Alisch and Hopkins were the first to arrive at the scene. *Dawes I*, 2024 WL 2268529, at *1; ROA.1092 [Hopkins Bodycam 2:30-3:00]. They located the vehicle, "which was boxed in on three of four sides—by fences to the front and left and by another car to the right." *Dawes I*, 2024 WL 2268529, at *1; ROA.1092 [Hopkins Bodycam 3:15-3:30].

SUMMARY OF ARGUMENT

The Court should affirm the district court's judgment. The undisputed facts establish that: the Officers were responding to a call of a suspicious vehicle; the vehicle

United States v. Smith, 814 F.3d 268, 273 (5th Cir. 2016) ("The law-of-the-case doctrine bars reexamination of issues of law or fact decided on appeal in subsequent proceedings in a trial or appellate court."); *Cooper Tire & Rubber Co. v. Farese*, 248 F. App'x 555, 558 (5th Cir. 2007) ("The law of the case doctrine provides that a decision of a factual or legal issue by an appellate court establishes the law of the case and must be followed in all subsequent proceedings in the same case in the trial court.").

against the City. ROA.1417 n.9. The district court thus again entered final judgment for the City, which Appellants now appeal.

SUMMARY OF ARGUMENT

The Court should affirm the district court's judgment. The undisputed facts establish that: the Officers were responding to a call of a suspicious vehicle; the vehicle was reported to be stolen; the Officers identified themselves as police and gave repeated verbal commands to the occupants of the vehicle to show their hands; the occupants of the vehicle ignored the commands; the occupants of the vehicle instead started the engine and began trying to back the vehicle out of parking space striking a fence and patrol car in the process; that two officers were in the path of the vehicle within seconds of when officers initiated force; and the officers that fired their weapons still believed fellow officers were in the vehicle's path and thus in imminent danger. On these facts, the district court correctly held that the Officers' use of force did not violate the Fourth Amendment.

Additionally, even assuming the Officers' force was unreasonable (it was not), the district court correctly entered summary judgment for the City because Appellants failed to demonstrate *Monell* liability. In holding that Appellants could not establish *Monell* liability, the district court correctly applied this Court's controlling precedent holding that where, as here, municipal employees' conduct does not violate clearly established law, their governmental employer cannot be deemed to have been deliberately indifferent on a failure-to-train theory.

holding that Appellants could not establish *Monell* liability, the district court correctly applied this Court's controlling precedent holding that where, as here, municipal employees' conduct does not violate clearly established law, their governmental employer cannot be deemed to have been deliberately indifferent on a failure-to-train theory.

ARGUMENT

I. A motion for summary judgment based on use of force is reviewed de novo.

"The court shall grant summary judgment if the movant shows that there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law." FED. R. CIV. P. 56(a).

> [W]here the nonmovant bears the burden of proof at trial, the movant may merely point to an absence of evidence, thus shifting to the non-movant the burden of demonstrating by competent summary judgment proof that there is an issue of material fact warranting trial. Only when "there is sufficient evidence favoring the nonmoving party for a jury to return a verdict for that party" is a full trial on the merits warranted.

Lindsey v. Sears Roebuck & Co., 16 F.3d 616, 618 (5th Cir. 1994) (internal citations omitted) (quoting *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 249 (1986)). All reasonable inferences must be viewed in the light most favorable to the party opposing summary judgment, and any doubt must

on the scene rather than with the 20/20 vision of hindsight." *Id.* at 729 (quoting *Graham*, 490 U.S. at 396). The calculus of reasonableness must embody allowance for the fact that police officers are often forced to make split-second judgments—in circumstances that are tense, uncertain, and rapidly evolving—about the amount of force that is necessary in a particular situation." *Graham*, 490 U.S. at 396-97. However, "[t]he question is one of 'objective reasonableness,' not subjective intent, and an officer's conduct must be judged in light of the circumstances confronting him, without the benefit of hindsight." *Manis v. Lawson*, 585 F.3d 839, 843 (5th Cir. 2009).

II. The district court correctly rendered summary judgment for the City on Appellants' *Monell* claims on the ground that the officers did not use unreasonable force under the Fourth Amendment.

Appellants concede the settled principle of law that if a municipality's employee has not violated an individual's constitutional rights, *Monell* liability cannot attach to the municipal employer. (*See* Appellants' Br. 30 ["If the Section 1983 claims against police officers are dismissed because of the lack of a constitutional violation, the claims against the City would also be defeated."].) *See Hicks-Fields v. Harris County*, 860 F.3d 803, 808 (5th Cir. 2017) ("'As is well established, every *Monell* claim requires "an underlying constitutional violation."'"). For the reasons stated below, the salient undisputed facts of this case—as determined in *Dawes I*—show the officers did not violate Appellants' Fourth Amendment rights. As such, their *Monell* claims fail, and the Court should affirm the district court's judgment.

A. The Graham factors show the Officers' use of force was not unreasonable.

Determining whether a use of force was reasonable under the Fourth Amendment is not capable of precise definition or mechanical application. *Graham*,

Monell claim requires an underlying constitutional violation." For the reasons stated below, the salient undisputed facts of this case—as determined in *Davies I*—show the officers did not violate Appellants' Fourth Amendment rights. As such, their *Monell* claims fail, and the Court should affirm the district court's judgment.

A. The *Graham* factors show the Officers' use of force was not unreasonable.

Determining whether a use of force was reasonable under the Fourth Amendment "is not capable of precise definition or mechanical application." *Graham*, 490 U.S. 386 at 396 (quoting *Bell v. Wolfish*, 441 U.S. 520, 559 (1979)). Instead, "its proper application requires careful attention to the facts and circumstances of each particular case, including" what are known as the *Graham* factors: (1) "the severity of the crime at issue," (2) "whether the suspect poses an immediate threat to the safety of the officers or others," and (3) "whether he is actively resisting arrest or attempting to evade arrest by flight." *Id.* "The 'reasonableness' of a particular use of force must be judged from the perspective of a reasonable officer on the scene, rather than with the 20/20 vision of hindsight." *Id.* Thus, the central determination is

CONCLUSION

For the foregoing reasons, the Court should affirm the district court's judgment.

Respectfully submitted,

s/ J. Cheves Ligon

J. CHEVES LIGON
Assistant City Attorney
CITY ATTORNEY'S OFFICE
1500 Marilla Street, Room 7DN
Dallas, Texas 75201
Telephone: 214-670-3519
john.ligon@dallas.gov

January 30, 2026

CERTIFICATE OF SERVICE

Pursuant to Federal Rule of Appellate Procedure 25(d) and Fifth Circuit Rule 25.2, I hereby certify that on January 30, 2026, the foregoing document was electronically filed with the Clerk of the Court for the United States Court of Appeals for the Fifth Circuit, using the electronic filing system of the Court. I further certify that I have complied with the privacy and redaction requirements of Federal Rule of Appellate Procedure 25(a)(5) and Fifth Circuit Rule 25.2.13; that the electronic submission is an exact copy of the paper document; and that the document has been scanned for viruses with the most recent version of a commercial virus scanning program and is free of viruses.

Additionally, on January 30, 2026 a true and correct copy of the foregoing document was served via ECF electronic notice through the Court's Notice of Docket Activity upon Thad D. Spalding, Shelby White, and Daryl K. Washington, counsel for Appellants, who have consented in writing to accept such notice as service of this document by electronic means.

/s/ J. Cheves Ligon
Attorney for City of Dallas

CERTIFICATE OF COMPLIANCE WITH RULE 32(a)

CERTIFICATE OF COMPLIANCE

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s/ J. Cheves Ligon

Assistant City Attorney

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/s/ J. Cheves Ligon
Attorney for City of Dallas

Dated: January 30, 2026